

Court No. - 39

Case :- WRIT - C No. - 5972 of 2021

Petitioner :- Chandra Pal

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Hans Pratap Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Deepak Verma, J.

Sri Krishna Agrawal, learned counsel has received instructions on behalf of respondent no.4.

The petitioner herein seeks to challenge the recovery citation dated 02.03.2020 issued by respondent no.3. It appears that against the demand notice dated 18.02.2014, pursuant to which recovery citation dated 02.03.2020 has been issued, the petitioner had approached this Court in Writ C No. 22823 of 2019 (Chandra Pal vs. Dakshinachal Vidyut Vitran Nigam Ltd and 4 others).

This Court taking note that the dispute regarding correctness of the electricity bill had been considered and decided by the Executive Engineer, relegated the petitioner to approach the Consumer Grievance Redressal Forum in accordance with Clause 7.10 of the U.P. Electricity Supply Code, 2005 read with U.P. Electricity Regulatory Commission (Consumer Grievance Redressal Forum & Electricity Ombudsman) Regulations, 2007. Clause 6.10(i) of the Regulations, 2007 indicates that the Forum has power to pass interim order pending final disposal of the complaint.

The contention of the petitioner is that the complaint dated 14.08.2019 has been filed by the petitioner and the same is pending before the Consumer Grievance Redressal Forum, Dakshinanchal Vidyut VItaran Nigam Ltd, Banda. It is, thus, open for the petitioner to file interim application seeking for stay of recovery citation or demand notice issued by respondent no.3

In view of the fact that the petitioner had earlier been relegated to avail alternative remedy and he had already availed the same, the present writ petition cannot be entertained.

The writ petition is, accordingly, **dismissed**.

Order Date :- 15.3.2021

A.Kr.